

Code: 1255

IN THE FAMILY DIVISION
OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
IN AND FOR THE COUNT OF WASHOE

Megan McCafferty

Applicant,

vs.

Douglas Clark

Adverse Party.

Case No.

TPO16-01555

Dept No.

DM

APPLICATION FOR A TEMPORARY AND/OR EXTENDED ORDER FOR PROTECTION AGAINST
DOMESTIC VIOLENCE

Please write or print clearly. Use black or dark blue ink.
Complete this Application to the best of your knowledge.

Applicant states the following facts under penalty of perjury:

1. Applicant's Date of Birth: 8/25/91 Adverse Party's Date of Birth: 3/20/85
Relationship: I am the ex fiance (for example, wife, ex-husband, girlfriend, father,
sister, etc.) of the Adverse Party.

- (a) Length of relationship: 4 years
(b) Have you ever lived together? Yes ☒ No ☐ If so, how long? 3 years
(c) Are you living together now? Yes ☒ No ☐
(d) Date of Separation: 9/30/16
(e) We have child(ren) **TOGETHER**: Yes ☒ or No ☐ If yes, where and with whom are
these child(ren) living? living with Megan McCafferty @ 6550 Pyramid Way #37 Sparks NV 89436

2. My address is: ☐ **CONFIDENTIAL**. (If confidential, do not write address here)

☒ If address is not confidential, write below:

Address 6550 Pyramid Way #37 Sparks NV 89436

City Sparks State NV Zip Code 89436

I ☐ own ☒ rent this residence. Lease/title is held in all the following name(s):

Doreen Clark Megan McLafferty

How long have you been living in this residence? 2 years

3. Adverse Party's address is:

Address 6550 Pyramid Way #37

City Sparks State NV Zip Code 89436

How long has the Adverse Party been living in this residence? 2 years

4. My place of employment is ☐ **CONFIDENTIAL**. (If confidential, do not write address here)

☐ If not confidential, state place(s) of employment:

Name of employer _____

Address: _____ Phone _____

City _____ County _____ State _____

Name of employer _____

Address: _____ Phone _____

City _____ County _____ State _____

Name of employer _____

Address: _____ Phone _____

City _____ County _____ State _____

5. Adverse Party's employer is:

Address: _____ Phone _____

City _____ County _____ State _____

6. (a) The name(s) and date(s) of birth of the minor child(ren) of whom I am the parent, appointed guardian, or who live in my home, are as follows:

NAME (first and last)	DATE OF BIRTH	APPLICANT'S CHILD (Yes/No)	ADVERSE PARTY'S CHILD (Yes/No)	WHO CHILD LIVES WITH
1. <u>Evakay Baldes</u>	<u>6-19-09</u>	Circle one Yes ☒ No ☐	Circle one Yes ☐ No ☒	<u>Megan</u>
2. <u>Alexis Clark</u>	<u>2-24-14</u>	Circle one Yes ☒ No ☐	Circle one Yes ☒ No ☐	<u>Megan</u>

NAME (first and last)	DATE OF BIRTH	APPLICANT'S CHILD (Yes/No)	ADVERSE PARTY'S CHILD (Yes/No)	WHO CHILD LIVES WITH
3.		Circle one Yes ☐ No ☐	Circle one Yes ☐ No ☐	
4.		Circle one Yes ☐ No ☐	Circle one Yes ☐ No ☐	
5.		Circle one Yes ☐ No ☐	Circle one Yes ☐ No ☐	
6.		Circle one Yes ☐ No ☐	Circle one Yes ☐ No ☐	

(b) Have you or the Adverse Party ever been awarded custody/guardianship of the minor child(ren) by Court Order? ☒ Yes ☐ No

Who was awarded custody/guardianship? ☒ Applicant ☐ Adverse Party

By what Court? Wyoming State City of Riverton (only of Evakay)

Court Case No. (if known) _____

7. Please check the appropriate box, **IF YOU** or the **ADVERSE PARTY** have ever filed a case in any court for a ☐ Divorce, ☒ Custody, ☐ Paternity, ☒ Child Support, ☐ Guardianship, ☒ Order for Protection Against Domestic Violence, or ☒ Stalking/Harassment Order. Please indicate when and where the case(s) was filed, and list the case number(s) if known.

Riverton Wyoming against Justin David Baldes

8. (a) Has CHILD PROTECTIVE SERVICES (CPS) ever been contacted regarding any member of the household in the past year? ☒ Yes ☐ No

(b) Is CPS currently involved with your family? ☐ Yes ☒ No

If yes, give details, including the caseworker's name:

Billy Jennings case closed Case was open for not having fear in home but was closed

1 9. (a) Does the Adverse Party possess a firearm, or does the Adverse Party have a firearm under his
2 or her custody or control? ☐ Yes ☒ No ☐ I don't know

3 (b) Has the Adverse Party ever threatened, harassed, or injured you, the minor child(ren), or
4 anyone else with a firearm or any other weapon? ☐ Yes ☒ No ☐ I don't know

5 If yes, give details:
6
7
8
9

10 10. (a) ☒ I have been or reasonably believe I will become a victim of domestic violence committed
11 by the Adverse Party.

12 (b) ☒ The child(ren) have been or are in danger of becoming a victim of domestic violence
13 committed by the Adverse Party.

14 **In the following space, state the facts that support your Application. Be as specific as you can,
15 starting with the most recent incident. Include the approximate dates and locations, and whether
16 law enforcement or medical personnel have been involved.**

17 **THIS APPLICATION IS A PUBLIC RECORD**

18 Yesterday Donovan came to my home threatening us
19 with removal of children and harm to me. I kicked him
20 out of the house October 1st because I had found out
21 he has been doing Meth things escalated ending with
22 two visits from the Sheriff's office him and his
23 mother Della Baker had been packing his things and
24 trapped us in the bathroom with the children. Pounding on
25 the door trying to get in and take them from those home
26 irrational behavior and threats of harm to myself
27 Threatens suicide "I'll hit a wall at 120 and die" in
28 attempt of control over me. Continuous verbal abuse
starting in 2013 Body Shaming isolation
and withholding of phone use and funds for

1 groceries. heavy drinking/drug use continue destruction
2 of property. will not allow me to work or get a license
3 refuses to have conversations unless its fighting in
4 front of children Pass's out drunk on kitchen floor
5 3-4 times a week left job in fear of drug
6 testing Backs me into corners/rooms will not
7 allow me to leave house tells me things such
8 as "you are a mistake" "your body gross me out"
9 Steals Everyones Birthcertificates/Id's plates off
10 car. threats of kicking us on the street. Brought
11 us down with no family besides his to isolate
12 me. forces me to become a stay at home mom. Verbal
13 assaults and harassment continues I asked him to
14 leave he Refused punched a dent into dryer/car
15 Finally he leaves 8/0-2-16 Comes Back high at
16 1am. threatening to kick sleeping children out of
17 home I wouldn't allow him access to the house
18 Comes Back at 2pm sheriffs get called they
19 couldn't make him leave they leave he corners me
20 grabs my arm and hits my abdomen then traps
21 us in bathroom Sheriff gets called again him and
22 his mother leave then send me text messages
23 about calling cps on me and other harassing statements
24 Multiple unanswered calls to me taunting me and
25 trying to get me to afraid to leave in fear
26 of them Changing looks and losing my home
27

28 PLEASE DO NOT WRITE ON THE BACKS OF ANY PAGES.

1 11. Have **YOU** ever been arrested or charged with domestic violence, or any other crime committed
2 against your spouse, partner, or child(ren)? ☐ Yes ☒ No

3 If yes, WHEN and where?

4 _____
5 _____

6 12. To your knowledge, has the **ADVERSE PARTY** ever been arrested or charged with domestic
7 violence, or any other crime committed against his/her spouse, partner, or child(ren)?

8 ☐ Yes ☐ No ☒ I don't know If yes, WHEN and where?

9 _____
10 _____
11 _____

12 13. An emergency exists, and I need a **TEMPORARY ORDER FOR PROTECTION AGAINST**
13 **DOMESTIC VIOLENCE** issued immediately, without notice to the Adverse Party, to avoid
14 irreparable injury or harm. I request that it include the following relief, and any other relief the
15 Court deems necessary in an emergency situation. (Please check all the choice(s) that may apply
16 to **YOU**):

17 ☒ (A) Prohibit the Adverse Party, either directly or through an agent, from threatening,
18 physically injuring, or harassing me and/or the minor child(ren).

19 ☒ (B) Prohibit the Adverse Party from any contact with me whatsoever.

20 ☒ (C) Exclude the Adverse Party from my residence and order the Adverse Party to stay at
21 least 100 yards away from my residence.

22 ☐ (D) Obtain law enforcement assistance to ☐ accompany me to the following residence,

23 _____ or

24 ☐ to accompany the Adverse Party to the following residence,

25 _____
26 to obtain personal property.

27 ☒ (E) Grant temporary custody of the minor child(ren) to me.

28 ☐ (F) Order that custody, visitation, and support of the minor child(ren) remain as ordered in
the Decree of Divorce/Order entered in Case Number _____ in the

_____ Court of the State of _____

1 ☒ (G) Order the Adverse Party to stay at least 100 yards away from the minor child(ren)'s
2 school(s), or day care(s), located at ☐ CONFIDENTIAL

3 (If confidential, do not write name of a school/day care and address here.)

4 ☐ If NOT confidential, write name of school(s)/day care(s) and address(es) below:

5 (1) Name of school or day care Sequoyia Elementary
6 Address Iron Drive 507
7 City Sparks County Washoe State NV

8
9 (2) Name of school or day care _____
10 Address _____
11 City _____ County _____ State _____

12 (3) Name of school or day care _____
13 Address _____
14 City _____ County _____ State _____

15
16 ☐ (H) Order the Adverse Party to stay at least 100 yards away from my place(s) of
17 employment.

18 ☐ (I) Order the Adverse Party to stay at least 100 yards away from the following places,
19 which I or the minor child(ren) frequent regularly:

20 (1) Name _____
21 Address _____
22 City _____ County _____ State _____

23 (2) Name _____
24 Address _____
25 City _____ County _____ State _____

26 (3) Name _____
27 Address _____
28 City _____ County _____ State _____

1 (J) ☒ (1) Prohibit the Adverse Party, either directly or through an agent, from physically
2 injuring or threatening to injure any animal that is owned or kept by the Adverse Party, the
3 minor child(ren), or me.

4 ☒ (2) Prohibit the Adverse Party, either directly or through an agent, from taking
5 possession of any animal owned or kept by me or the minor child(ren).

6 (K) I further request the following other conditions:

7 the return of Identification and birth
8 Certificates

9 at this time I don't need an extension
10
11
12
13

14 **IF YOU WISH TO APPLY FOR A HEARING FOR AN EXTENDED ORDER**
15 **FOR PROTECTION COMPLETE THE FOLLOWING INFORMATION**

16
17 14. ☐ I request the Court hold a hearing for an EXTENDED ORDER FOR PROTECTION
18 AGAINST DOMESTIC VIOLENCE (which could be in effect for up to one year), and at that
19 hearing the Court issue an Extended Order for Protection Against Domestic Violence and that it
20 include the following relief and any other relief the Court deems appropriate.

(Please check all the choice(s) that may apply to YOU).

21 ☐ (A) Prohibit the Adverse Party, either directly or through an agent, from threatening,
22 physically injuring, or harassing me and/or the minor child(ren).

23 ☐ (B) Prohibit the Adverse Party from any contact with me whatsoever.

24 ☐ (C) Exclude the Adverse Party from my residence and order the Adverse Party to stay at
25 least 100 yards away from my residence.

26 ☐ (D) Grant temporary custody of the minor child(ren) to me.

27 ☐ (E) Grant the Adverse Party visitation with the minor child(ren).

28 ☐ (F) Order the Adverse Party to pay support and maintenance of the minor child(ren). (You
may be required to file an Affidavit of Financial Condition prior to the hearing).

☐ (G) Order the Adverse Party to pay the rent or make payments on a mortgage or pay towards my support and maintenance.

☐ (H) Order that custody, visitation, and support of the minor child(ren) remain as ordered in the Decree of Divorce/Order entered in Case Number _____ in the _____ Court of the State of _____.

☐ (I) Order the Adverse Party to stay at least 100 yards away from the minor child(ren)'s school, or day care, located at: ☐ **CONFIDENTIAL**
(If confidential, do not write name of school and address here).

☐ If address is not confidential, please write name of school or day care and address(es) below:

(1) Name of school or day care _____

Address: _____

City _____ County _____ State _____

(2) Name of school or day care _____

Address _____

City _____ County _____ State _____

3) Name of school or day care _____

Address _____

City _____ County _____ State _____

☐ (J) Order the Adverse Party to stay at least 100 yards away from my place of employment. ☐ **CONFIDENTIAL**

If address is not confidential, please write name of employer and address(es) below:

(1) Name of Employer _____

Address: _____

City _____ County _____ State _____

1 (2) Name of Employer _____

2 Address _____

3 City _____ County _____ State _____

4 (3) Name of Employer _____

5 Address _____

6 City _____ County _____ State _____

7
8 ☐ (K) Order the Adverse Party to stay at least 100 yards away from the following places,
9 which I or the minor child(ren) frequent regularly:

10 (1) Name _____

11 Address: _____

12 City _____ County _____ State _____

13 (2) Name _____

14 Address _____

15 City _____ County _____ State _____

16 (3) Name _____

17 Address _____

18 City _____ County _____ State _____

19 ☐ (L) (1) ☐ Prohibit the Adverse Party, either directly or through an agent, from physically
20 injuring or threatening to injure any animal that is owned or kept by the Adverse Party,
21 the minor child(ren), or me.

22 (2) ☐ Prohibit the Adverse Party, either directly or through an agent, from taking
23 possession of any animal owned or kept by me or the minor child(ren).

24 (3) ☐ I request the Court to specify the arrangements for the possession and care of any
25 animal owned or kept by the Adverse Party, the minor child(ren), or me.
26
27
28

☐ (N) I further request the following other conditions:

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